

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

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VERNAIL BLOUNT,

Case No.

Plaintiff,

COMPLAINT

-against-

JURY TRIAL DEMANDED

CITY OF NEW YORK; Detective MICHAEL KELLY, Tax No. 935104; Detective PETER BOHRINGER, Tax No. 915326; Police Officer AARON LOHMAN, Shield No. 7378; Police Officer ERIK NELSON Tax No. 942266; and JOHN and JANE DOE 1 through 25, individually and in their official capacities (the names John and Jane Doe being fictitious, as the true names are presently unknown),

Defendants.

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NATURE OF THE ACTION

1. This is an action to recover monetary damages arising out of the violation of Plaintiff's rights under the Constitution of the United States and the laws of the State of New York.

PRELIMINARY STATEMENT

2. Plaintiff VERNAIL BLOUNT ("Plaintiff") brings this action for compensatory damages, punitive damages, and attorney's fees pursuant to 42 U.S.C. §§ 1983, 1988 for the wrongful acts of defendants THE CITY OF NEW YORK ("CITY"), DET. MICHAEL KELLY (Tax # 935104), DET. PETER BOHRINGER (Tax # 915326), P.O. AARON LOHMAN (Shield # 7378), P.O. ERIK NELSON (Tax # 942266) and POLICE OFFICERS JOHN AND JANE DOE #1-25 (collectively "Defendants"), all

acting under color of state law and pursuant to their authority, in violation of Plaintiff's rights under the Constitution and laws of the United States and the State of New York.

3. As described below, Plaintiff has been subjected to numerous false arrests and other constitutional and New York State law violations by New York City Police Department ("NYPD") officers at the 113th Precinct during five (5) separate incidents.

JURISDICTION AND VENUE

4. This action seeks redress for violation of Plaintiff's constitutional and civil rights, pursuant to, *inter alia*, 42 U.S.C. §§ 1983, 1988, the Fourth, Fifth, Sixth and Fourteenth Amendments to the Constitution of the United States and laws of the State of New York.

5. The jurisdiction of this Court is predicated upon 28 U.S.C. §§ 1331, 1343 and 1367(a).

6. Venue is proper in this district pursuant to 28 U.S.C. §§ 1391 (b) and (c).

7. This Court has supplemental jurisdiction over the New York State law claims pursuant to 28 U.S.C. § 1367.

JURY DEMAND

8. Plaintiff demands a trial by jury in this action.

PARTIES

9. Plaintiff is a resident of Queens County in the City and State of New York.

10. Defendant City is a municipal corporation organized under the laws of the State of New York. It operates the NYPD, a department or agency of Defendant CITY responsible for the appointment training, supervision, promotion and discipline of police officers and supervisory police officers, including the individually-named defendants

herein.

11. Defendants Detective MICHAEL KELLY, Tax No. 935104 (“KELLY”), Detective PETER BOHRINGER, Tax No. 915326 (“BOHRINGER”), Police Officer AARON LOHMAN, Shield No. 7378 (“LOHMAN”) and Police Officer ERIK NELSON, Tax No. 942266 (“NELSON”), at all times relevant herein, were officers, employees and agents of the NYPD. Defendants KELLY, BOHRINGER, LOHMAN and NELSON are sued in their individual and official capacities.

12. At all times relevant here in, Defendants JOHN and JANE DOE 1 through 25 were police officers, detectives or supervisors employed by the NYPD. Plaintiff does not know the real names and shield numbers of defendants JOHN and JANE DOE 1 through 25.

13. At all times relevant herein, defendants JOHN and JANE DOE 1 through 25 were acting as agents, servants and employees of City and the NYPD. Defendants JOHN and JANE DOE 1 through 25 are sued in their individual and official capacities.

14. At all times relevant herein, all individual defendants were acting under color of state law.

STATEMENT OF FACTS

Incident #1

15. On or about August 11, 2012, at approximately 2:50 p.m., Plaintiff was lawfully present outside of his home at 188-03 Hilburn Avenue in Queens County, New York 11412.

16. Several Defendant NYPD Officers, including Defendant P.O.s JOHN DOE #1-5 and Defendant P.O. ERIK NELSON (Tax # 942266), approached Plaintiff.

17. Without any probable cause or reasonable suspicion, Defendant NYPD officers searched Plaintiff's person and vehicle. Defendant DET. ERIK NELSON alleged that he recovered eighty (80) dollars in United States currency from Plaintiff's person.

18. Defendant DET. ERIK NELSON falsely alleged that he recovered two (2) plastic bags containing marijuana from the driver's side floor of a four-door sedan parked in Plaintiff's driveway, claiming that the alleged contraband was in open view from the officer's vantage point on a public street.

19. Still without any probable cause or reasonable suspicion, Defendant NYPD officers handcuffed and arrested Plaintiff, claiming that he was involved in an alleged drug transaction.

20. Defendant NYPD officers transported Plaintiff to the NYPD 113th Precinct.

21. At the precinct, Defendant Officers again searched Plaintiff's person, which yielded no contraband.

22. After processing Plaintiff, Defendant Officers transported him to Central Booking to await arraignment.

23. Plaintiff was arraigned under Docket Number 2012QN043459, based on a criminal complaint signed by Defendant P.O. ERIK NELSON.

24. This criminal complaint contained false allegations against Plaintiff, and charged Plaintiff with several misdemeanors.

25. Plaintiff was forced to defend himself against these baseless charges until all charges were dismissed in his favor on April 10, 2013.

26. As a result of these violations of his civil rights by Defendants, Plaintiff was subjected to the humiliation of being questioned by NYPD officers in full public view, was

arrested, handcuffed and detained in front of his family and peers, was unlawfully imprisoned and was marked with the stigma of being charged with selling drugs, all of which resulted in damage to his esteem and reputation within his community.

Incident #2

27. On or about September 28, 2012, at approximately 5:30 p.m., Plaintiff was lawfully present outside of his home at 188-03 Hilburn Avenue in Queens County, New York 11412.

28. Several Defendant NYPD Officers, including Defendants P.O.s JOHN DOE #6-10 and P.O. AARON LOHMAN (Shield # 7378), approached Plaintiff.

29. Without any probable cause or reasonable suspicion, Defendant NYPD officers searched Plaintiff's person and his vehicle.

30. Defendant P.O. AARON LOHMAN falsely alleged that he recovered one (1) bag containing marijuana from the passenger seat of Plaintiff's vehicle on top of a compact disc case.

31. Defendant NYPD officers handcuffed and arrested Plaintiff.

32. Defendant NYPD officers transported Plaintiff to the NYPD 113th Precinct.

33. Plaintiff's person was searched again at the precinct.

34. After being processed at the precinct, Plaintiff was transported to Central Booking to await arraignment.

35. Plaintiff was arraigned under Docket Number 2012QN052382, based on a criminal complaint signed by one of the Defendant Officers.

36. This criminal complaint contained false allegations against Plaintiff made by Defendant P.O. AARON LOHMAN and charged Plaintiff with a misdemeanor.

37. On April 10, 2013, Judge Michelle A. Armstrong granted in its entirety Plaintiff's motion to suppress tangible evidence due to the illegal search of Plaintiff's person and vehicle.

38. All charges were dismissed in Plaintiff's favor on April 10, 2013.

39. As a result of these violations of his civil rights by Defendants, Plaintiff was subjected to the humiliation of being questioned by NYPD officers in full public view, was arrested, handcuffed and detained in front of his family and peers, was unlawfully imprisoned and was marked with the stigma of being falsely charged with a crime, all of which resulted in damage to his esteem and reputation within his community.

Incident #3

40. On or about June 8, 2013, at approximately 4:00 p.m., Plaintiff was lawfully present outside of his home at 188-03 Hilburn Avenue in Queens County, New York 11412, with his son.

41. Several Defendant NYPD Officers dressed in plainclothes, including Defendants P.O.s JOHN DOE #11-15 and DET. MICHAEL KELLY, approached Plaintiff, who was sitting in a vehicle that was lawfully parked in front of his home.

42. Without any probable cause or reasonable suspicion, Defendant NYPD officers searched Plaintiff's person and vehicle.

43. Defendant DET. MICHAEL KELLY falsely alleged that he recovered sandwich bags containing approximately two (2) ounces of marijuana from the floor of the vehicle, as well as three hundred ninety-eight dollars (\$398) in United States currency from Plaintiff's pants pocket.

44. Defendant DET. MICHAEL KELLY handcuffed and arrested Plaintiff.

45. Next, without any justification or provocation, Defendants P.O.s JOHN DOE #11-15 and DET. MICHAEL KELLY proceeded to punch and kick Plaintiff while Plaintiff was handcuffed and on the ground.

46. Plaintiff's son observed this gratuitous and violent beating of his father by police officers, which caused Plaintiff to suffer great emotional trauma, knowing that his son was witnessing it.

47. This beating left Plaintiff with a fractured left arm, and bruises and cuts about his body and face.

48. Defendant NYPD officers placed Plaintiff into a van and transported him to the NYPD 113th Precinct, where they again beat Plaintiff.

49. Plaintiff's person was searched again at the precinct, which again yielded no contraband.

50. After being processed at the precinct, Plaintiff was transported to Central Booking to await arraignment.

51. Plaintiff was arraigned under Docket Number 2013QN031722, based on a criminal complaint signed by Defendant DET. MICHAEL KELLY.

52. This criminal complaint contained false allegations against Plaintiff, including that Plaintiff was in possession of marijuana and resisted arrest, and charged Plaintiff with several misdemeanors.

53. Following arraignment, bail was set and Plaintiff was remanded to a State correctional facility for approximately two (2) weeks before bail was posted and Plaintiff was finally released from custody.

54. Plaintiff was forced to defend himself against these baseless charges until

all charges were dismissed in his favor on April 16, 2015.

55. As a result of these violations of his civil rights by Defendants, Plaintiff was subjected to the humiliation of being questioned by NYPD officers in full public view, was beaten, arrested, handcuffed and detained in front of his family and peers, was unlawfully imprisoned and was marked with the stigma of being falsely charged with a crime, all of which resulted in damage to his esteem and reputation within his community.

Incident #4

54. On or about July 5, 2013, at approximately 3:15 pm, Plaintiff was lawfully driving his motorcycle near his home at 188-03 Hilburn Avenue in the County of Queens, New York 11412.

55. Without any provocation from Plaintiff, a NYPD van containing Defendant DET. MICHAEL KELLY and Defendant P.O.s JOHN DOE #16-20 struck Plaintiff, causing him to fall from his motorcycle and forcefully hit the pavement.

56. At the time of this incident, Plaintiff was wearing a soft sling as a result of an arm fracture that NYPD officers, including Defendant DET. MICHAEL KELLY, had caused during the June 8, 2013 arrest described above, under Incident #3.

57. As a result of being struck by the NYPD van, Plaintiff suffered a shoulder injury on his previously fractured arm.

58. Then, without any probable cause or reasonable suspicion, Defendant DET. MICHAEL KELLY handcuffed and arrested Plaintiff.

59. Defendant Officers searched Plaintiff's person and found no contraband.

60. Defendant DET. MICHAEL KELLY falsely alleged that he recovered one (1) plastic bag containing marijuana from the center console of a green Pontiac parked in

Plaintiff's driveway.

61. Defendant DET. MICHAEL KELLY and Defendant P.O.s JOHN DOE #16-20 placed Plaintiff in the NYPD van and transported him to the 113th Precinct.

62. Plaintiff was processed at the precinct, where another search of Plaintiff's person produced no contraband.

63. Still lacking reasonable suspicion or probable cause, Defendant Officers transported Plaintiff to a Central Booking facility to await arraignment.

64. Plaintiff was arraigned under Docket Number 2013QN037106, based on a criminal complaint containing false allegations against Plaintiff signed by Defendant DET. MICHAEL KELLY.

65. Plaintiff was falsely charged with PL 221.40 (Criminal Sale of Marijuana in the Fourth Degree); PL 221.10-1 (Criminal Possession of Marijuana in the Fifth Degree); PL 205.30 (Resisting Arrest); and PL 110/215.40-2 (Attempting to Tamper with Physical Evidence).

66. Following arraignment, having been unjustly detained and deprived of his liberty, between forty-eight (48) and seventy-two (72) hours, Plaintiff was released from custody.

67. On July 6, 2013, Plaintiff received treatment for his shoulder injury in the Emergency Department at Queens Hospital Center in Jamaica, New York.

68. On April 16, 2015, all criminal charges against Plaintiff were dismissed in Plaintiff's favor.

69. As a result of these violations of his civil rights by Defendants, Plaintiff was subjected to the humiliation of being questioned by NYPD officers in full public view, was,

injured, arrested, handcuffed, and detained in front of his family and peers, was unlawfully imprisoned, and was marked with the stigma of being falsely charged with a crime, all of which resulted in damage to his esteem and reputation within his community.

Incident #5

70. On or about August 16, 2013, at approximately 5:00 pm, Plaintiff was lawfully present near his home at 188-03 Hilburn Avenue in Queens County, New York 11412.

71. Plaintiff was walking to a local nursing home to visit his mother on her birthday.

72. Defendant Officers, including Defendant DET. MICHAEL KELLY, Defendant DET. PETER BOHRINGER, and Defendant P.O.s JOHN DOE #21-25 approached Plaintiff.

73. Without any probable cause or reasonable suspicion, Defendant Officers handcuffed Plaintiff and took him into custody.

74. Defendant P.O. JOHN DOE #21 searched Plaintiff's person but found no contraband.

75. Nevertheless, Defendant DET. MICHAEL KELLY, Defendant DET. PETER BOHRINGER, and Defendant P.O.s JOHN DOE #21-25 placed Plaintiff in an NYPD van and transported him to the 113th Precinct.

76. This false arrest caused Plaintiff to suffer emotional distress, particularly because he had been en route to visit his mother when Defendant Officers took Plaintiff into custody.

77. At the 113th Precinct, Plaintiff was subjected to another search of his

person, which again yielded no contraband.

78. Despite the lack of contraband on Plaintiff's person, Defendant Officers transported Plaintiff to a Central Booking facility to await arraignment.

79. Plaintiff was arraigned under Docket Number 2013QN045926, based on a criminal complaint containing false allegations against Plaintiff signed by Defendant DET. BOHRINGER.

80. Plaintiff was falsely charged with PL 221.40 (Criminal Sale of Marijuana in the Fourth Degree).

81. Following arraignment, Plaintiff was remanded to a State Correctional facility, where he was unjustly detained for approximately five (5) to six (6) days before being released.

82. On April 16, 2015, all criminal charges against Plaintiff were dismissed in Plaintiff's favor.

83. Within ninety (90) days after the claims alleged in this Complaint arose, a written Notice of Claim was served upon Defendants at the Comptroller's Office.

84. At least thirty (30) days have elapsed since the service of the Notice of Claim, and adjustment or payment of the claim has been neglected or refused.

85. This action has been commenced within one (1) year and ninety (90) days after the happening of the events upon which the claims are based.

86. As a result of these violations of his civil rights by Defendants, Plaintiff was subjected to the humiliation of being questioned by NYPD officers in full public view, was arrested, handcuffed and detained in front of his family and peers, was unlawfully imprisoned and was marked with the stigma of being falsely charged with a crime, all of

which resulted in damage to his esteem and reputation within his community.

CAUSES OF ACTION

FIRST CLAIM

Deprivation of Federal Civil Rights

87. Plaintiff repeats and re-alleges every allegation contained in the paragraphs above as if fully set forth herein.

88. All of the aforementioned acts of Defendants, their agents, servants and employees were carried out under color of state law.

89. All of the aforementioned acts deprived Plaintiff of the rights, privileges and immunities guaranteed to citizens of the United States by, *inter alia*, the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States and in violation of 42 U.S.C. § 1983.

90. The acts complained of were carried out by the aforementioned individual Defendants in their capacities as police officers, with the entire actual and/or apparent authority attendant thereto.

91. The acts complained of were carried out by the aforementioned individual Defendants in their capacities as police and law enforcement officers, pursuant to the customs, usages, practices, procedures and rules of Defendant CITY and its NYPD, and other agencies, all under the supervision of ranking officers of the NYPD.

92. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of his or her respective municipality or authority that is forbidden by the Constitution of the United States.

93. By these actions, Defendants have deprived Plaintiff of rights secured by

the United States Constitution, in violation of 42 U.S.C. § 1983, for which Defendants are individually liable.

94. By the actions described herein, Defendants intentionally caused and allowed Plaintiff to be placed in apprehension of imminent harmful and offensive contact, in violation of the Constitution and Laws of the State of New York.

95. Defendants' actions were not in furtherance of any legitimate police interest and were not otherwise privileged.

96. As a consequence of Defendants' actions as described herein, Plaintiff has been injured.

97. Defendant CITY is liable under *respondeat superior* for the aforesaid injuries.

SECOND CLAIM
False Arrest under 42 U.S.C. § 1983

98. Plaintiff repeats and re-alleges every allegation contained in the paragraphs above as if fully set forth herein.

99. As a result of Defendants' aforementioned conduct, Plaintiff was subjected to an illegal, improper and false arrest by Defendants and taken into custody and caused to be falsely imprisoned, detained, confined, incarcerated and prosecuted by the Defendants in criminal proceedings, without any probable cause, privilege or consent.

100. As a result of the foregoing, Plaintiff's liberty was restricted for an extended period of time, and Plaintiff was at all times aware of his confinement. Plaintiff was put in fear for his safety and subjected to handcuffing and other physical restraints without probable cause.

101. As a direct and proximate result of his false arrest, Plaintiff was subjected

to humiliation, ridicule and disgrace before his neighbors and peers. Plaintiff was discredited in the minds of many members of his community. Plaintiff suffered and will continue to suffer physical, mental and emotional pain and suffering, mental anguish, embarrassment and humiliation.

102. The acts of Defendants were intentional, wanton, malicious, reckless and oppressive and entitle Plaintiff to an award of punitive damages.

THIRD CLAIM
Excessive Force under 42 U.S.C. § 1983

103. Plaintiff repeats and re-alleges every allegation contained in the paragraphs above as if fully set forth herein.

104. The degree of force Defendants used against Plaintiff as described herein was excessive, unreasonable, unwarranted and without justification.

105. Defendants' actions as described herein were intentional, willful, malicious, egregious, grossly reckless, gratuitous, unconscionable and unprovoked.

106. As a result of Defendants' excessive force and brutality, Plaintiff has suffered severe physical pain from injuries including, but not limited to, bone fractures, contusions and bruising and swelling about his body.

107. All of the aforementioned acts of Defendants constituted excessive force in violation of the Constitution of the United States, which is actionable under 42 U.S.C. § 1983 and also in violation of the laws of the State of New York, all for which Defendants are individually liable.

FOURTH CLAIM
Malicious Abuse of Process under 42 U.S.C. § 1983

108. Plaintiff repeats and re-alleges every allegation contained in the paragraphs

above as if fully set forth herein.

109. Defendants employed regularly issued legal process by arresting, processing and initiating criminal proceedings against Plaintiff to forbear him of liberty and the lawful use of property.

110. Defendants acted with intent to do harm as there was at no point any reasonable suspicion or probable cause to subject Plaintiff to public humiliation, an unreasonable search, detention, arrest, booking, imprisonment and prosecution.

111. Defendants undertook the aforementioned acts in order to obtain a collateral objective outside the legitimate ends of the process, namely to arrest persons known to be innocent to improve the stop-and-frisk and arrest numbers of the NYPD, among other collateral objectives. This abuse of power is outside of and contrary to the legitimate use of the law enforcement and criminal justice processes and undermines the civil rights of persons such as Plaintiff for whom there is no reasonable suspicion or probable cause pertaining to any alleged criminal activity.

112. The criminal charges against Plaintiff were terminated in his favor.

113. As a result of Defendants' unlawful acts, Plaintiff suffered numerous violations of his constitutional rights, including deprivation of liberty following his arrest.

FIFTH CLAIM

Malicious Prosecution under 42 U.S.C. 1983 and New York State Law

114. Plaintiff repeats and re-alleges every allegation contained in the paragraphs above as if fully set forth herein.

115. Defendants initiated criminal proceedings against Plaintiff without probable cause or reason to believe that the criminal charges against him could succeed and with

actual malice, thereby causing Plaintiff to be prosecuted on baseless charges for several months and to suffer a significant deprivation of liberty in connection therewith.

116. The criminal charges against Plaintiff were terminated in his favor.

117. Defendants and their agents, servants and employees carried out all of the aforementioned acts under color of state law.

118. Defendants' unlawful prosecution of Plaintiff without probable cause and denial of associated due process rights, as described herein, violated Plaintiff's rights under the Fourth Amendment to the United States Constitution and the laws of the State of New York to be free of malicious prosecution, for which Defendants are individually liable.

119. In addition to their individual liability under 42 U.S.C. § 1983, defendant CITY, as employer of the individual defendant officers, is also responsible for their wrongdoing under the doctrine of *respondeat superior*.

120. As a result of Defendants' malicious prosecution and other unlawful acts, Plaintiff was subjected to humiliation, ridicule and disgrace before his neighbors and peers. Further, as a result of Defendants' unlawful acts, Plaintiff was discredited in the minds of many members of the community. Plaintiff suffered and will continue to suffer mental and emotional pain and suffering, mental anguish, embarrassment and humiliation.

SIXTH CLAIM
Illegal Stop and Frisk under 42 U.S.C. § 1983

121. Plaintiff repeats and re-alleges every allegation contained in the paragraphs above as if fully set forth herein.

122. As a result of Defendants' aforementioned conduct, Plaintiff was subjected to an illegal and improper stop-and-frisk by Defendants without any reasonable suspicion of criminality or other constitutionally required grounds. Moreover, this stop-and-frisk and

the above-alleged arrest were the result of racial and/or national origin profiling.

123. As a direct and proximate result of such acts, Defendants deprived Plaintiff of his Fourth and Fourteenth Amendment rights in violation of 42 U.S.C. §1983.

124. As a direct and proximate result of those constitutional abuses, Plaintiff suffered and will continue to suffer physical, mental and emotional pain and suffering, as well as mental anguish, embarrassment and humiliation.

125. The acts of Defendants were intentional, wanton, malicious, reckless and oppressive and entitle Plaintiff to an award of punitive damages.

SEVENTH CLAIM
Deliberate Indifference to Plaintiff's Serious Medical Condition in Violation of the United States Constitution

126. Plaintiff repeats and re-alleges each and every allegation contained in the paragraphs above with the same force and effect as if fully set forth herein.

127. As described above, Defendants acted with deliberate indifference to Plaintiff's serious medical needs, by among other things, ignoring objective evidence of Plaintiff's serious need for medical care and unduly delaying Plaintiff medical treatment and causing Plaintiff to experience undue suffering and the threat of residual injury.

128. Defendants consciously disregarded the serious medical risk posed by Plaintiff's injuries by, among other things, unreasonably delaying essential emergency treatment.

129. As a consequence thereof, Plaintiff has been injured.

EIGHTH CLAIM
Equal Protection under 42 U.S.C. § 1983

130. Plaintiff repeats and re-alleges every allegation contained in the paragraphs

above as if fully set forth herein.

131. Defendants unlawfully singled out Plaintiff and violated his First, Fourth, Fifth and Fourteenth Amendment rights, in part because of his race, age and gender.

132. Defendants and their agents, servants and employees carried out all of the aforementioned acts under color of state law.

133. As a result of Defendants' unlawful acts, Plaintiff was subjected to humiliation, ridicule and disgrace before his family and peers, as well as confinement, pain and suffering, embarrassment and emotional distress. Further, as a result of Defendants' unlawful acts, Plaintiff was discredited in the minds of many members of his community. Plaintiff suffered and will continue to suffer mental and emotional pain and suffering, mental anguish, embarrassment and humiliation.

NINTH CLAIM
Municipal Liability under 42 U.S.C. § 1983

134. Plaintiff repeats and re-alleges every allegation contained in the paragraphs above as if fully set forth herein.

135. The acts complained of were carried out by the aforementioned individual Defendants in their capacities as police officers and officials, with the entire actual and/or apparent authority attendant thereto.

136. The acts complained of were carried out by the aforementioned individual Defendants in their capacities as police officers and officials pursuant to the customs, policies, usages, practices, procedures, and rules of Defendant CITY and the NYPD, all under the supervision of ranking officers of said department.

137. The foregoing customs, policies, usages, practices, procedures, and rules of

Defendant CITY and the NYPD constituted a deliberate indifference to the safety, well-being and constitutional rights of Plaintiff.

138. The foregoing customs, policies, usages, practices, procedures and rules of Defendant CITY and the NYPD were the direct and proximate cause of the constitutional violations suffered by Plaintiff, as alleged herein.

139. The foregoing customs, policies, usages, practices, procedures and rules of Defendant CITY and the NYPD were the moving force behind the constitutional violations suffered by Plaintiff, as alleged herein.

140. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating the constitutional rights of Plaintiff.

141. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers and were directly responsible for the violation of Plaintiff's constitutional rights.

142. Defendant CITY, as municipal policymaker in the training and supervision of the NYPD, has pursued a policy and custom of deliberate indifference to the rights of persons in its domain who suffer violation of the right to freedom from unlawful entry, negligence, and from the use of excessive and unreasonable force in violation of, *inter alia*, the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States, 42 U.S.C. § 1983, and the constitution and laws of the State of New York.

143. All of the foregoing acts by Defendants deprived Plaintiff of federally protected rights, including, but not limited to, the right:

- a. Not to be deprived of liberty without due process of law;
- b. To be free from search, seizure, arrest, prosecution and imprisonment not

based upon reasonable suspicion or probable cause;

- c. To be free from malicious prosecution; and
- d. To receive equal protection under the law.

TENTH CLAIM
Assault under New York Law

144. Plaintiff repeats and re-alleges each and every allegation contained in the paragraphs above with the same force and effect as if fully set forth herein.

145. By the actions described above, the individual Defendants intentionally caused and allowed Plaintiff to be placed in apprehension of imminent harmful and offensive contact.

146. As a consequence thereof, Plaintiff has been injured.

ELEVENTH CLAIM
Battery under New York Law

147. Plaintiff repeats and re-alleges each and every allegation contained in the paragraphs above with the same force and effect as if fully set forth herein.

148. By the actions described above, Defendants intentionally caused and allowed Plaintiff to be struck in a harmful and offensive manner.

149. As a consequence thereof, Plaintiff has been injured.

TWELFTH CLAIM
Intentional Infliction of Emotional Distress

150. Plaintiff repeats and re-alleges each and every allegation contained in the paragraphs above with the same force and effect as if fully set forth herein.

151. Defendants' unlawful conduct, including the violations of Plaintiff's constitutional rights, constituted extreme and outrageous conduct that was beyond the boundaries of decency.

152. Defendant NYPD officers acted intentionally in their unlawful conduct.

153. Defendant CITY acted with reckless disregard as to whether its customs, policies, usages, practices and rules of its NYPD would result in extreme and outrageous conduct inflicted upon Plaintiff.

154. Defendants' conduct was the direct and proximate cause of the harm to Plaintiff.

155. Plaintiff suffered and continues to suffer physical injury and emotional distress.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff respectfully requests judgment against defendants as follows:

1. Compensatory damages against all defendants, jointly and severally;
2. Punitive damages against the individual defendants, jointly and severally;
3. Reasonable attorneys' fees and costs pursuant to 28 U.S.C. § 1988; and
4. Such other and further relief as this Court deems just and proper.

Dated: September 28, 2015
Brooklyn, New York

Respectfully submitted,



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